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File No: EXP202409603
RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT
From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND
FIRST: On November 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against XFERA CONSUMER FINANCE ESTABLECIMIENTO FINANCIERO DE CRÉDITO, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:
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Procedure No: EXP202409603 (PS/00479/2024)
AGREEMENT TO INITIATE SANCTIONING PROCEDURE
From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS
FIRST: On 03/06/24, Mr. A.A.A. (hereinafter, the claimant) submitted a complaint to the Spanish Agency for Data Protection (AEPD).
The complaint is directed against the entity XFERA CONSUMER FINANCE ESTABLECIMIENTO FINANCIERO DE CRÉDITO, S.A. with NIF: A88438270 (XFERA or the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).
In the complaint, the claimant states that after receiving the “MoneyGO” card from Yoigo, he began to receive numerous advertising SMS messages, for which he requested the cessation of such messages to Yoigo on March 10 at the email datospersonales@yoigo.com, and Yoigo confirmed his cancellation on March 13. However, he continued to receive advertising SMS messages on March 18 and 19, as well as on April 9. Due to the persistence of the messages, he contacted Yoigo again on April 9 and subsequently filed a complaint with AUTOCONTROL. Yoigo responded on April 10, informing that the responsibility for the SMS messages belonged to Xfera Consumer Finance, with whom they communicated that same day, and although Xfera promised to stop the messages, they claimed that some messages in progress might continue to arrive. Despite these actions, the claimant received a new SMS on May 27.
Along with the complaint, the following documentation is attached:
- Dated 01/06/24, a copy of the invoice issued by Yoigo in the name of the claimant, for the period 01/05/24 to 01/06/24.

- Dated 19/04/24, a letter issued by XFERA and addressed to the claimant, in which they state the following:
“We acknowledge receipt of your communication and confirm that we are taking the appropriate measures so that you do not receive commercial offers or advertising information from Xfera Consumer Finance, EFC, S.A.
Please be informed that it may happen that your exercise of the right of opposition coincided with the preparation of a new commercial offer and, due to the impossibility of preventing its dispatch, this would be the last commercial information you would receive from Xfera Consumer Finance, EFC, S.A. However, if you continue to receive advertising communications, we would appreciate it if you could send us a copy of them in order to carry out the necessary inquiries and resolve any possible incident that may have arisen. This blocking does not apply to institutional communications that we are legally obliged to send, such as the annual summary of commissions and interests...”.
- Dated 27/05/24, a screenshot of the SMS message:

“Hello A.A.A., there are some brands that are winking at you! Get up to 48% off on your favorite brands by using your MoneyGO Card in our Benefits Club. mpg/[bnpp.Ik/Club Data Card: App MoneyGO. Xfera CF. Issued by Cetelem”.

SECOND: On 02/07/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

THIRD: On 01/08/24, this Agency received a response from the respondent in which they state the following:

“FIRST. – Prior to responding to the request for information made by this Agency, my client considers it necessary to provide a brief account of the facts that motivated the complaint and the actions taken by XFERA:

i. The Claimant contracted the services of Xfera Móviles, S.A.U. (hereinafter, “Yoigo”) and, at the time of contracting, was offered an associated product consisting of a credit line with a card (hereinafter, “MoneyGo”) regarding which the Claimant formalized the contract on June 17, 2022. Document No. 1 is attached, which is the MoneyGo contract formalized between my client and the Claimant.

ii. On April 10, 2024, the Claimant sent a complaint form to the Customer Service of my represented party, requesting the cessation of commercial communications associated with MoneyGO. The complaint form submitted by the Claimant is provided as DOC 2.

iii. On April 19, 2024, a response to the complaint filed on April 10, 2024, was sent to the Claimant. In this communication, it is informed that XFERA will take all necessary measures to prevent the sending of new commercial communications. The resolution sent by my represented party as a result of the complaint filed by the Claimant with Customer Service is attached as DOC 3.

SECOND. – As can be seen from the documentation provided, upon receiving the SMS message on May 27, 2024, submitted along with the complaint sent to this AEPD, the Claimant did not contact my represented party to inquire about the reasons for receiving the mentioned communication.

From the moment the interested party exercised the right to object, no commercial communications offering products or services marketed by my represented party have been sent.

In this regard, the SMS sent on May 27, 2024, referred to information about the advantages available to MoneyGO customers; that is, it is not a commercial communication about new products or services, but rather an informative communication reminding the Claimant about the characteristics, functionalities, and utilities of the MoneyGO Card.

Examples of commercial communications sent by XFERA to another customer are attached as DOCUMENT NUMBER 4, which include information on how to oppose receiving such communications, indicating "NO+PUBLI" and the phone number to contact. Since this was not a commercial communication, this information was not included in the SMS sent to the Claimant.

In accordance with the above, the communication sent would fall within the framework of contractual information, and consequently, the contact data processed for the purpose of sending the mentioned SMS would have been done under the provisions of Article 6.1 b) of the GDPR, that is, the execution of the contract, as it pertains to information regarding certain benefits available to holders of the MoneyGO card in compliance with the provisions of the Particular Conditions of the Contract, which must be communicated to customers.

THIRD. - In light of all the above, my represented party, respectfully stated, believes that it has acted appropriately and in accordance with the applicable regulations, and therefore, no reproach can be made to XFERA regarding the processing of personal data in the facts subject to this information request, having acted diligently and with full respect for the regulations in this matter.

Along with the response letter, the following documentation is attached:

- Dated 06/17/22, a copy of the "Credit Line Contract with MoneyGo" signed between the entity XFERA

CONSUMER FINANCE ESTABLECIMIENTO FINANCIERO DE CRÉDITO, S.A. and the claimant, where among other issues, the following can be read regarding the sending of commercial communications:
“Annex of Information on Personal Data Protection (…) c.1.
Sending of commercial communications by electronic means about products similar to those contracted, prior profiling with internal sources. Based on our legitimate interest and always respecting your rights and freedoms and the guarantees provided in the applicable regulations, the Entities may process your data to carry out commercial actions by electronic means of similar products and services…
In any case, you will have the possibility at all times to oppose them in accordance with the procedure provided in section 7 “Rights that you can exercise regarding your personal data…
7.- Rights that you can exercise regarding your personal data.
The holder(s) will have, in accordance with the applicable legislation, the right to request the Entities access to their personal data and its rectification or deletion or the limitation of its processing or to oppose the processing as well as the portability of their data, addressing: By postal mail to the Customer Service of XFERA at the address Paseo de los Melancólicos 14 A (28005) Madrid
or
by email to SAC-quejasyreclamaciones@xferacf.com …
- Dated 04/10/24, a copy of the email sent by the claimant to the defendant, at the address SAC-quejasyreclamaciones@xferacf.com, where the following can be read:
o “Following the instructions on your website, I attach the complaint and claim form duly completed and signed, as well as several documents attached to it.”
- Dated 04/10/24, a copy of the complaint or claim form from the entity XFERA, signed by the claimant, where it can be read:
o (2.2) Claim: “To stop receiving commercial messages from MoneyGO or any other company of the Xfera Consumer Finance E.F.C SA group.”

through any electronic or physical means: SMS, email, commercial calls, postal mail, etc.”
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Dated 19/04/24, a copy of the response sent by the respondent to the claimant regarding the opposition request made by the latter. (The content of the same has already been presented above).
FOURTH: On 03/09/24, the Director of the Spanish Agency for Data Protection issued an admission agreement for the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.
LEGAL GROUNDS
I.
Competence.
In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.
Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”
The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."
II.
Summary of the events that occurred:
In this case, the claimant states that, after contracting a credit card called “MoneyGO” provided by Yoigo, he began to receive multiple commercial text messages via SMS. In light of this situation, he requested to unsubscribe from the communications to Yoigo, but this company informed him that the responsibility for these messages lay with Xfera Consumer Finance.

After a new complaint directed to the customer service of Xfera Consumer Finance, SAC-quejasyreclamaciones@xferacf.com, on 10/04/24, this company responded on 17/04/24 that necessary measures would be taken to cease the sending of future commercial communications. However, he received a new commercial SMS on 27/05/24, with the following message:
“Hello A.A.A., there are brands that are giving you the eye! Get up to 48% off on your favorite brands by using your MoneyGO Card in our Advantage Club. Mpg/[bnpp.Ik/Club Data Card: App MoneyGO. Xfera CF. Issued by Cetelem.”
For its part, the respondent, in its response directed to the AEPD, argues, among other issues, that the SMS sent on 27/05/24 does not constitute a commercial communication, but rather an informative one, intended to remind the advantages and benefits associated with the MoneyGO card, framed within the existing contractual relationship and in compliance with the conditions established in the signed contract.

III.

Prohibition of sending commercial or promotional communications that have not been previously requested or expressly authorized.

The LSSI prohibits unsolicited or expressly authorized commercial communications (Article 21), based on a concept of commercial communication defined in its Annex as follows: “f) Commercial communication”: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.
In the case at hand, the SMS in question contains expressions such as “up to 48% off” and “your favorite brands” with the clear purpose of inducing the recipient to use their “MoneyGO” card in the “Advantage Club,” which indirectly promotes the use of the card and, therefore, the commercial interests of Xfera Consumer Finance, so it is evident that the content of the SMS fits the legal definition of a commercial communication.
The respondent attempts to frame the SMS sent as an “informative communication” within the contractual relationship. However, an informative communication, in contractual terms, should be limited to notifying the customer of essential aspects of their contractual relationship (e.g., updates to terms and conditions, changes in the fee policy, or security information). The inclusion of offers and discounts in the “Advantage Club” is not an essential aspect of the contractual relationship, but rather a promotional tool. Consequently, the message does not respond to legitimate contractual needs and therefore violates the express request of the interested party not to receive any additional communications.
In conclusion, the SMS received does have a commercial character by directly promoting additional benefits of the “MoneyGO” card and the “Advantage Club,” making irrelevant the designation that the respondent seeks to attribute to it, as it is evident that the SMS sent to the claimant after he requested not to receive any more communications fits the legal definition of a commercial communication.

IV

Unfulfilled obligation

The facts enumerated above, regarding the sending of commercial communications via SMS without having requested or expressly authorized them, may

constitute a violation of the provisions established in Article 21.1 of the LSSI, by the entity being claimed against, as it states the following:
“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients of these is prohibited...”

V.

Proposal and Graduation of the sanction

The aforementioned infringement of Article 21.1 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not

met and do not constitute a serious infringement."
In accordance with the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.
For its part, Article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions: "The amount of the fines imposed will be graduated taking into account the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.
Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed in accordance with the aggravating factor of the existence of intent (section a), for sending commercial communications to the claimant after he requested not to receive any more communications of this type and the entity being claimed against acknowledged receipt of the request.
According to these criteria, it is deemed appropriate to impose an initial sanction of €5,000 (five thousand euros) for the infringement of Article 21.1 of the LSSI, without prejudice to what results from the instruction of the procedure.
Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity XFERA CONSUMER FINANCE ESTABLECIMIENTO FINANCIERO DE CRÉDITO, S.A. with NIF: A88438270, for the violation of Article 21.1 of the LSSI, classified as minor.

in Article 38.4.d) of said regulation, for sending commercial communications via SMS without having requested or expressly authorized them.
SECOND: TO APPOINT Mr. B.B.B. as Instructor and Mr. C.C.C. as Secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).
THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, all of which are part of this administrative file.
FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 5,000 euros (five thousand euros).
FIFTH: TO NOTIFY: this agreement to initiate the sanctioning file to the entity XFERA CONSUMER FINANCE ESTABLECIMIENTO FINANCIERO DE CRÉDITO, S.A., granting it a hearing period of ten working days to formulate allegations and present the evidence it deems appropriate. If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).
In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, resolving the procedure with the imposition of this sanction.
Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the

proposed sanction, which will imply a reduction of 20% of the amount of this, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.
The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 3,000 euros (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.
If the voluntary payment of any of the amounts indicated above (4,000 or 3,000 euros) is chosen, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Furthermore, the proof of payment must be sent to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.
The procedure will have a maximum duration of nine months from the date of the initiation agreement. After this period, if no resolution has been issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.
In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications, and that the lack of practice of this notice will not prevent the notification from being considered fully valid.
Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.
Mar España Martí
Director of the Spanish Agency for Data Protection.
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SECOND: On November 25, 2024, the defendant has proceeded to pay the sanction in the amount of 3,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.
THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement and its legal qualification.

LEGAL GROUNDS
I

Competence
In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures." Finally, the Fourth Additional Provision "Procedure in relation to the competences attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competences attributed to it by other laws."
II
Termination of the procedure
Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:
“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,
the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the termination of procedure EXP202409603, in accordance with the provisions of Article 85 of the LPACAP.
SECOND: TO NOTIFY this resolution to XFERA CONSUMER FINANCE ESTABLECIMIENTO FINANCIERO DE CRÉDITO, S.A.
In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.
Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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